

Tentative Rulings and Resolution Review Hearings
March 10, 2025
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

CANTRELL VS. JAMES F. CRUMMETT, D.D.S., INC., ET AL.

Case Number: 23CV-0202069

Tentative Ruling on Plaintiff and Defendant’s Applications for Permission to File Under Seal: Plaintiff and Defendant have each filed Applications for Permission to File Documents Under Seal, with respect to Plaintiff’s Motion, Defendant’s Opposition, and Plaintiff’s Reply on Plaintiff’s concurrently filed Motion for Leave to File a First Amended Complaint and Request for a Trial Continuance.

The parties in this action stipulated to a Protective Order (“PO”) which the Court entered on February 10, 2025. The PO provides in relevant part: “Where any Confidential Materials, or Information derived from Confidential Materials, is included in any motion or other proceeding governed by California Rules of Court, Rules 2.550 and 2.551, the party shall follow those rules.” Defendant designated the materials at issue as Confidential Information pursuant to the PO.

CRC 2.550(d) provides that the court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.

Here, both Plaintiff and Defendant have filed Applications and Supporting Declarations requesting to seal portions of their papers which reference certain information, based entirely on the underlying documents’ designation as confidential under the PO. No argument or evidence is presented regarding any of the express findings the Court must make in order to permit filing under seal. CRC Rule 2.551(a) provides that: “The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” Here, the only grounds provided for sealing is that the parties have agreed to designate the material as confidential. This is insufficient.

Both Plaintiffs and Defendants have failed to establish facts in support of sealing as required by the California Rules of Court. The Motions to Seal are **DENIED**. The three proposed orders will be modified and executed.

Tentative Ruling on Motion for Leave to File First Amended Complaint: This is an action alleging workplace harassment, retaliation, battery, and related causes of action, arising out of Plaintiff's employment at Shasta Dental Care. Plaintiff seeks leave to file a First Amended Complaint, adding Teamwork HR as a defendant with respect to the First, Third, and Ninth Causes of Action. Defendants oppose the Motion.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general, the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. An amendment made in the interest of justice may even be made during trial. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. See, e.g., *Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649.

In this matter, Plaintiff has complied with the requirements set forth in CRC 3.1324. Defendant argues that Plaintiff unduly delayed in bringing this motion, and that amendment will be prejudicial to Defendant. This action was filed April 25, 2023. The parties stipulated to arbitration and the matter was stayed from October 27, 2023 to April 19, 2024. The matter never proceeded to arbitration, and the parties stipulated to return to state court. After the stay was lifted, the parties then began engaging in discovery and Plaintiff received a production from Defendant on December 17, 2025 which included documents evidencing Teamwork HR's role with respect to Plaintiff's employment. Plaintiff reviewed these documents in early January 2025. Plaintiff asked Defendant to stipulate to the amendment, but Defendant refused. Therefore, Plaintiff sought leave to amend the Complaint by filing this Motion on February 11, 2025. Considering the stay of this action due to arbitration, and the undisputed timeline laid out by the parties, the Court does not find that Plaintiff unreasonably delayed in seeking leave to amend.

Amendment of the Complaint to add Teamwork HR as a Defendant will necessarily delay trial, which is currently set for May 6, 2025. However, the weight of prejudices would be heavier on Plaintiff absent amendment. This is because Plaintiff would need to file a parallel suit based on the same facts against Teamwork HR. This is an inefficient use of both party and court resources

and may result in inconsistent outcomes. Defendants will not be subject to loss of evidence, added preparation costs, or discovery that otherwise would not have been undertaken if amendment is permitted.

The Motion for Leave to File a First Amended Complaint is **GRANTED**. The proposed First Amended Complaint is attached as an exhibit to the moving papers. As the clerk may not alter a filed document, Plaintiffs are required to file the First Amended Complaint within ten days of today's hearing. Plaintiffs are reminded of the requirement to file a Proof of Service of Summons within thirty days after the filing of the amended complaint per CRC 3.110(b). The current trial date of May 6, 2025 is **VACATED**. This matter is set for review regarding trial resetting on **Monday, July 7, 2025, at 9:00 a.m. in Department 64.**

CREDITORS ADJUSTMENT BUREAU, INC. VS. STRIKE FIRST SNIPERS LLC, ET AL.

Case Number: 22CVG-01048

Tentative Ruling on Application for Judgment Debtor Examination: Petitioner Creditors Adjustment Bureau, Inc. seeks an Order for Appearance and Examination of Kelli Hayward, President of Strike First Enterprises, LLC. Code of Civil Procedure section 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. A Proof of Personal Service was filed on February 18, 2025, indicating that the judgment debtor was served on January 15, 2024. This is obviously a typo, as the Order for Appearance didn't issue until December 12, 2024, and the process server executed the Proof of Service on January 20, 2025. Petitioner is ordered to appear and confirm the date indicated at Item 2 is a typo and confirm that service was effected on January 15, 2025. The Court also notes that at Item 2, the box is checked indicating that there is an attachment POS-020(D). However, there is no attachment. Nonetheless, the Proof of Service indicates that the required documents were timely personally served. An amended proof of service must be filed, correcting the defects, and this must be filed within five court days of today's hearing. The debtor examination shall proceed today.

DOBBINS, ET AL. VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORT

Case Number: CVCV20-0194615

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: This is a wage and hour class action. Plaintiffs seek preliminary approval of a class action and PAGA settlement. The operative complaint is the Third Amended Complaint filed August 2, 2023. Plaintiffs are Marilyn Dobbins, Allyssa Gall, and Hannah Polk, each individually and on behalf of all others similarly situated. Attorneys Kane Moon, H. Scott Leviant, and Mariam Ghazaryan of Moon Law Group, P.C. represent both Marilyn Dobbins and Allyssa Gall. Kearney Littlefield LLP and Littlefield Law represent Plaintiff Hannah Polk.

The Motion for Preliminary Approval of Class Action Settlement, filed January 22, 2025, is made by Plaintiffs Marilyn Dobbins and Hannah Polk. In a footnote on page 1 of the Motion, Plaintiffs state "Plaintiff Alyssa Gall, aka Alice Parker-Combs, signed the MOU setting forth the primary terms of this Settlement but did not sign the Agreement and is not participating in this Motion as a moving party. All references to Plaintiffs herein refer to Marilyn Dobbins and Hannah Polk unless otherwise specified." (Mot. p. 1 fn. 1.) Alyssa Gall did not sign the Settlement Agreement. (Declaration of Leviant, Ex. 1.)

This matter first came on for hearing on February 24, 2025. The Court declined to rule on the merits at that time, expressing concern that Ms. Gall had not signed the settlement agreement and was not participating in the motion as a moving party. The Court requested supplemental briefing and supporting evidence. Plaintiffs filed a Supplemental Brief and Supplemental Declaration of H. Scott Leviant on February 25, 2025.

Moon Law Group, PC acknowledges it is counsel of record for Plaintiff Allyssa Gall. Yet, counsel seeks to settle this lawsuit without the agreement of its client, a named Plaintiff. Counsel's supplemental briefing cites to authority which provides that if a trial court concludes that a plaintiff cannot suitably represent a class, the trial court should permit discovery and/or amendment of pleadings to add suitable representatives for the class. *Best Buy Stores, LP v. Superior Ct.* (2006) 137 Cal. App. 4th 772. That is not the situation here. Here, we have a named Plaintiff, represented by putative class counsel, who has not agreed to settle this case. Plaintiffs submit a Memorandum of Understanding Plaintiff Gall signed on August 9, 2024, and assert that this is sufficient to bind Ms. Gall to a Settlement Agreement she did not sign. It is contradictory to assert that Ms. Gall is both bound by the MOU, and also not participating in the Motion for Preliminary Approval despite being a named Plaintiff. The terms of the MOU provide that "The Settlement described in this Memorandum of Understanding is subject to court approval and shall be based on the terms and conditions set forth below." It also provides that "Until such time that the stipulated settlement agreement is executed by the Parties, this executed MOU shall be treated as an enforceable settlement agreement pursuant to California Code of Civil Procedure § 664.6." (MOU ¶ 17.) Here, all parties except Ms. Gall have since executed a stipulated settlement agreement. Plaintiffs are not seeking enforcement of the MOU pursuant to CCP § 664.6.

Counsel's Supplemental Declaration indicates that Ms. Gall refused to sign an earlier draft of the MOU because of the general release provision, but later agreed to revised terms. (Decl. Leviant ¶¶ 6-7.) Additionally, the Declaration indicates that counsel has not had any communication with their client Ms. Gall since December 4, 2024. (Decl. Leviant ¶¶ 9-10.) The instant Motion was filed January 22, 2024. The Court is concerned that Ms. Gall has not been informed that her attorneys are seeking preliminary approval of the settlement without her participation.

The Court cannot address the merits of the Motion until this issue is resolved. The Motion for Preliminary Approval is **DENIED** without prejudice.

JONES VS. COUNTY OF SHASTA, ET AL.

Case Number: 22CV-0199596

Tentative Ruling on Motion for Summary Judgement, or in the Alternative Summary Adjudication: This is an action alleging negligence/wrongful death, and negligent supervision, arising out of the death of Cody Jones (Decedent) while in custody of the Shasta County Jail. Plaintiff is Decedent's mother, Janet Jones. Plaintiff alleges that on April 14, 2021, Decedent was remanded to the custody of Shasta County Jail after a preliminary hearing at the Shasta County Superior Court. He was placed into a safety jail cell because he was believed to be suicidal. Decedent hung himself within an hour of being booked. Defendant County of Shasta (County) moves for summary judgment on the grounds that the County cannot be liable to Plaintiff under Government Code section 844.6. Plaintiff opposes the Motion.

Request for Judicial Notice. The County requests the Court take judicial notice of the electronic docket for Shasta County Superior Court criminal case No. CRF20-0007342. The request is granted.

Evidentiary Objections. Defendant has filed objections to three items of Plaintiff's evidence. The Court rules as follows:

1. Exhibit 10 - Sustained
2. Declaration of Richard Lichten - Overruled
3. Exhibit 14 - Sustained

Merits. Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. If the moving party carries this burden, it causes a shift, and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. *Id.*

In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(o); *Aguilar, supra*, at 849. Summary adjudication follows the same standard, but applies to one or more causes of action within an action, if the party contends that the cause of action has no merit, or that one or more defendants did not owe a duty to the plaintiff. CCP § 437c(f). When an MSJ is unopposed, the court cannot grant summary judgment unless defendant meets its initial burden. *See Johnson v. Superior Court* (2006) 143 Cal.App.4th 207, 305. The scope of the defendant's initial burden is defined by the pleadings. *See 580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.

Defendant has met its initial burden of establishing that Plaintiff's First and Second Cause of Action have no merit, as they are both stated as general tort claims for negligence against the County, a public entity. The Tort Claims Act provides that a public entity is not liable for an injury "[e]xcept as otherwise provided by statute...." (Gov.Code, § 815.) Certain statutes do provide expressly for public entity liability in circumstances that are somewhat parallel to the potential liability of private individuals and entities but, as past cases have explained, "The intent of the Act is not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances." (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.) *Zelig v. Cnty. of Los Angeles* (2002) 27 Cal. 4th 1112, 1127–28. Moreover, Gov. Code § 844.6 specifically provides that, absent an applicable exception, a public entity is not liable for an injury to any prisoner. Plaintiff has not alleged any applicable exception. The burden thus shifts to Plaintiff to show a triable issue of material fact as to each cause of action.

Plaintiff's Complaint alleges two causes of action: 1) Negligence/Wrongful Death, and 2) Negligent Supervision. Plaintiff's First Cause of Action alleges that while Decedent was under the care and supervision of the County, Decedent hung himself in a safety cell within an hour of being booked. Plaintiff alleges the County had a duty to Decedent while he was under their care, the County breached that duty when Decedent was able to hang himself while in the safety cell – due to lack of proper training and supervision and lack of proper policies and procedures, and the failure to follow reasonable policies and procedures. Plaintiff alleges this led to Decedent being pronounced brain dead and ultimately dying after being taken off life support. Plaintiff's Second Cause of Action alleges the County had full custody and control over Decedent and had a duty to supervise and implement measures to safeguard the health and safety of Decedent. Plaintiff alleges the County negligently supervised Decedent and failed to exercise reasonable measures to safeguard his health and safety, allowing him to hang himself. Plaintiff alleges the county had the ability to take reasonable measures to safeguard the health and safety of Decedent, but failed to do so.

Government Code section 844.6 provides that: “Notwithstanding any other provision of this part, except as provided in this section and in Sections 814, 814.2, 845.4, and 845.6, or in Title 2.1 (commencing with Section 3500) of Part 3 of the Penal Code, a public entity is not liable for: ...2) an injury to any prisoner.” Here, it is undisputed that Decedent was a prisoner as defined in Gov. Code section 844. Therefore, unless a specific statutory exception applies, the County is not liable for an injury to Decedent. Plaintiff's Complaint does not allege any statutory exception in association with either the First or Second Cause of Action.

Although it is not pled in the Complaint, Plaintiff's Opposition argues for the application of Government Code section 855.8(d) here to impose liability against the County. Gov. Code section 855.8(d), provides “Nothing in this section exonerates a public employee from liability for injury proximately caused by his negligent or wrongful act or omission in administering any treatment prescribed for mental illness or addiction.”

Here, Plaintiff has named only the County in its action. Previously, an individual employee (Joshua Mills) was named, but he was dismissed without prejudice on December 1, 2022. There are no active claims against any County employee. Thus, Gov. Code § 855.8(d) does not apply, as it is explicitly directed to a public employee, not a public entity. Moreover, Plaintiff has made no allegations in the Complaint or in the Opposition that any party was “administering any treatment prescribed for mental illness or addiction.” Instead, Plaintiff alleges the following “failures are at issue: 1) the failure to inspect the safety smock for tears or frays, 2) the failure to inspect the safety cell for possible anchor points, and 3) the failure to perform adequate monitoring.” (Opp. 6:6-9.) Plaintiff argues that the “treatment prescribed” here is that Decedent was assessed to be suicidal and placed in a safety cell for protection. (Opp. 6:11-12.) The Court finds that the jail staff's assessment of suicide risk and placement of the prisoner in a safety cell for his own protection, is not the *administration of treatment for mental illness* or addiction contemplated in the statute. Inspecting a safety smock for tears or frays, inspecting a cell for possible anchor points, and monitoring of the prisoner are not “administration of treatment for mental illness.” In sum, Gov. Code § 855.8(d) does not apply here as an exception to Gov. Code § 844.6.

Plaintiff's second argument, again not alleged in the Complaint, is that Government Code section 845.6 applies here as an exception to Gov. Code § 844.6, to attach liability to the County. In

relevant part, Gov. Code § 845.6 provides that a public entity is not liable for injury proximately caused by the failure of the employee to furnish or obtain medical care for a prisoner in his custody ... except if the employee knows or has reason to know that the prisoner is in need of immediate medical care and he fails to take reasonable action to summon such medical care.

Here, Plaintiff argues that it is “highly improbable to nearly impossible” for Decedent to tear his tear-resistant smock, twist it, secure it to an ¼ inch gap and hang himself, all in six minutes. (Opp. 18: 4-6.) Plaintiff argues this creates questions of material fact as to whether Defendant timely and reasonably obtained medical assistance for Decedent due to lack of documentation. Plaintiff notably does not argue that Defendant knew or had reason to know that the prisoner was in need of immediate medical care and failed to take reasonable action to summon it. Plaintiff does not present any evidence that an employee of Defendant knew or had reason to know that Decedent was in need of immediate medical care and failed to take reasonable action to summon it. Instead, Plaintiff argues that if Defendant had monitored and documented their observations of Decedent, and if they had more comprehensive training, policies and procedures, they would’ve been able to respond more quickly.

Plaintiff has not met its burden to establish triable issues of material fact with respect to whether any employee of Defendant knew or had reason to know Decedent needed immediate medical care, and failed to take reasonable action to summon it. Moreover, Defendant has established County employees took immediate action to summon medical care when Decedent was discovered hanging in his cell. The evidence establishes that six minutes after a 1:34 p.m. welfare check, at 1:40 p.m. Deputy Serda conducted a welfare check on Decedent. (UMF 41.) Deputy Serda noticed Decedent had placed his safety smock behind the window partition of the door, and observed the top of Decedent’s head slightly below the window. (UMF 42.) Deputy Serda started knocking at the door and calling Decedent’s name, but obtained no response. (UMF 43.) Deputy Serda then called for assistance, opened the safety cell’s door, and radioed for additional officers and medical staff. (UMF 44, 45, 48.) Deputies applied chest compressions to Decedent starting at 1:43 p.m. (UMF 53.) At 1:45 p.m., the jail’s medical staff applied the AED. (UMF 54.) Fire rescue arrived at 1:49 p.m, the jail’s lifesaving unit arrived at 1:50 p.m., and Decedent was transported to Mercy Medical Center at 1:50 p.m. (UMF 55, 56.) All of the preceding facts are “Undisputed” by Plaintiff, with the exception of UMF 48, which is disputed as to completeness.

The Court finds that there is no issue of material fact remaining with respect to whether a County employee knew or had reason to know that the prisoner was in need of immediate medical care and failed to take reasonable action to summon such medical care. The evidence establishes that the County took reasonable action to summon medical care immediately upon discovering the prisoner was in need of care. It is undisputed that Decedent was discovered hanging in his cell at 1:40 p.m., Deputies were administering chest compressions at 1:43 p.m., and Decedent was transported to the hospital at 1:50 p.m. Plaintiff does not argue that this reaction was too slow, or was a failure to take reasonable action to summon medical care. Instead, Plaintiff argues that Deputies should’ve been observing Decedent more frequently, or even continuously to prevent his actions. The statute does not impose such a requirement. It requires a public entity to take reasonable action to summon medical care when it knows or has reason to know that prisoner is in need of it. The undisputed evidence establishes that County did so.

The County’s Motion for Summary Judgment is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: KNECHT

Case Number: 25CV-0206916

Tentative Ruling on Petition for Change of Name: Petitioner Tina Lynn Knecht seeks to change her name to Tina Lynn Mendez. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

RABO AGRIFINANCE, LLC VS. WOOLERY, ET AL.

Case Number: CVCV21-0198097

Tentative Ruling on Motion to Be Relieved as Counsel: Jacob Wright of McCarthy & Rubright, LLP moves to be relieved as counsel for Defendants West and Ruth Wollery, dba Wollery Livestock. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. It requires the use of mandatory Judicial Council forms and evidence supporting service of all forms, including the proposed order, on the client as well as information related to why the motion has been brought instead of filing the substitution of attorney. CRC 3.1362(c) requires the supporting declaration to provide an explanation as to why the motion is necessary in place of a filing a consent to substitution under CCP § 248(1). Counsel's declaration and motion provide the requisite justification to be relieved, show proper service of all required documents and that the motion was served at the client's current address. The declaration also establishes that counsel confirmed Plaintiff's mailing address within the last 30 days by telephone. The Court finds that the requirements of CRC 3.1362 have been satisfied. The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed. Counsel is relieved effective upon filing of the proof of service of the signed order upon the clients.

SANCHEZ VS. ACV AUCTIONS, INC., ET AL.

Case Number: 24CV-0206455

Tentative Ruling on Motion to Compel Arbitration: This is an employment action alleging harassment, wrongful termination, and wage and hour causes of action. Defendant ACV Auctions, Inc. moves to compel arbitration. Plaintiff Sanchez opposes the Motion.

Merits: The Federal Arbitration Act ("FAA") like California law, codifies the strong public policy in favor of enforcing arbitration agreements. 9 U.S.C. § 1 et seq. The FAA applies to any written arbitration agreement in a contract evidencing a transaction involving interstate commerce. *Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 25, 277. A party seeking to enforce an arbitration agreement has the burden of showing FAA preemption. (*Woolls v. Superior Court* (2005) 127 Cal.App.4th 197, 211.) Here, the Court finds that the FAA applies, as the Agreement expressly so states.

Existence of Agreement: CCP § 1281.2 requires the Court to grant a petition to compel arbitration where it determines that an agreement to arbitrate the controversy exists. The court makes this determination in a summary process. (See § 1290.2.) "[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: "Because the existence of the agreement is a statutory prerequisite to granting the

[motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) *Gamboa v. Ne. Cmty. Clinic* (2021) 72 Cal.App.5th 158, 164–65. However, the burden of production may shift in a three-step process. First, the moving party bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Rosenthal, supra*, 14 Cal.4th at p. 413.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541) ... For this step, “it is not necessary to follow the normal procedures of document authentication.” *Gamboa, supra*, 72 Cal.App.5th at 165.

Here Defendant has met its burden of producing prima facie evidence of a written agreement to arbitrate. Defendant attaches a copy of the agreement purporting to bear Plaintiff’s electronic signature. If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*See Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219.) Here, Plaintiff does not dispute the existence of the agreement or challenge its authenticity. Therefore the Court finds that an agreement to arbitrate exists.

Enforceability of Agreement: Once the Court “determines the agreement to arbitrate exists, it should then decide the other objections to its enforceability. The court must grant the petition “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (§ 1281.2.)” *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219. Plaintiff bears the burden of showing unconscionability by a preponderance of the evidence. *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1468. ‘[U]nconscionability has both a “procedural” and a “substantive” element,’ the former focusing on “‘oppression”’ or “‘surprise”’ due to unequal bargaining power, the latter on “‘overly harsh”’ or “‘one-sided”’ results. [Citation.] ‘The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ [Citation.] But they need not be present in the same degree. ... [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa. *Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114. Here, Plaintiff alleges both procedural and substantive unconscionability.

The parties agree that Plaintiff was hired by ACV on or about March 8, 2021 as a Vehicle Condition Inspector in California. On August 20, 2021, HR sent Plaintiff a compensation packet that contained the Arbitration Agreement at issue. Plaintiff electronically signed it on September 2, 2021. It provides that covered claims (those arising out of or relating to employment with ACV) shall be resolved by mandatory binding arbitration.

Procedural Unconscionability. Plaintiff argues that he did not have the requisite intent for a meeting of the minds and could not have consented to the Agreement. He argues that the Agreement was unilaterally formed and provided to Plaintiff for signature without any explanation of its significance. Plaintiff believed that he had no other option but to sign everything in the compensation packet as a condition of his continued employment. He argues that he was never given a reasonable opportunity to seek legal advice or negotiate any aspect of the agreement.

Defendant counters that Plaintiff's failure to read and understand the agreement he admits to signing is not a bar to its enforcement. Defendant is correct. See, e.g. *Desert Outdoor Advertising v. Superior Court* (2011) 196 Cal. App. 4th 866, 872 (a cardinal rule of contract law is that a party's failure to read a contract, or to carefully read a contract, before signing it is no defense to the contract's enforcement). ACV presented Plaintiff with the Agreement as part of a compensation package. Plaintiff signed the Agreement, which was titled "Employee and Company Arbitration Agreement" as a stand-alone document. Although the form Agreement was presented to Plaintiff by the employer on a take it or leave it basis, this is insufficient on its own to bar enforcement. California courts routinely find employment contracts of adhesion to be enforceable, absent additional findings of procedural and substantive unconscionability.

"The fact that the arbitration agreement is an adhesion contract does not render it automatically unenforceable as unconscionable. Courts have consistently held that the requirement to enter into an arbitration agreement is not a bar to its enforcement. (*Lagatree v. Luce, Forward, Hamilton & Scripps* (1999) 74 Cal.App.4th 1105, 1127, 88 Cal.Rptr.2d 664 ["[T]he cases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or leave it' basis."]; *Graham v. Scissor-Tail, Inc.* (1981) 28 Cal.3d 807, 817, 171 Cal.Rptr. 604, 623 P.2d 165, fns. omitted (*Graham*) [such adhesion contracts are an "inevitable fact of life for all citizens--business[person], and consumer alike"]; *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1292, 58 Cal.Rptr.3d 5 ["[T]he compulsory nature of a predispute arbitration agreement does not render the agreement unenforceable on grounds of coercion or for lack of voluntariness." [Citation.]]")."

Serafin v. Balco Properties Ltd., LLC (2015) 235 Cal. App. 4th 165, 179.

Plaintiff does not allege oppression or surprise. Plaintiff was sent this agreement electronically on August 20, 2021, and signed it September 2, 2021. This shows that Plaintiff was not unduly time pressured, and had ample time to consider the Agreement and to consult an attorney. The Agreement has a very low degree of procedural unconscionability. Therefore, it must be enforced unless the degree of substantive unconscionability is high. See, e.g., *Serpa v. California Sur. Investigations, Inc.* (2013) 215 Cal. App. 4th 695, 704.

Substantive Unconscionability. Plaintiff's opposition argues only that the Agreement is substantively unconscionable because it does not provide express provisions for Plaintiff's right to discovery, and does not attach a copy of the applicable discovery rules or procedures, such that Plaintiff does not know what discovery, if any, he would be entitled to if this matter is compelled to arbitration. The Agreement specifies that the American Arbitration Association rules apply and provides the website where they may be accessed. The Agreement also states that a copy of the AAA rules and procedures are available from the HR department for Employee's review. As a threshold issue, the Court notes that California courts typically treat failure to attach applicable rules as a question of procedural unconscionability, not substantive unconscionability. See *Peng v. First Republic Bank* (2013) 219 Cal. App. 4th 1462, 1471-72. Plaintiff does not argue that any other provisions of the Agreement would support a finding of substantive unconscionability. Nor does Plaintiff identify any feature of the AAA rules that prevent fair and full arbitration. Thus, this Court finds that the failure to attach the AAA rules is insufficient to make the Agreement unenforceable on either procedural or substantive grounds.

The Motion to Compel Arbitration and Stay Proceedings Pending Arbitration is **GRANTED**. A proposed order has been lodged with the Court and will be executed. The proceedings are hereby stayed. The Court will set this matter on the resolution review calendar for status of arbitration on **Monday, September 8, 2025, at 9:00 a.m. in Department 64**. The parties are ordered to provide a status report to the Court no later than five court days prior to the hearing.

TD BANK USA, N.A. VS. BASSETT

Case Number: 24CVG-00745

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff TD Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Laura Bassett by mail on September 13, 2024. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,988.00 U.S. CURRENCY

Case Number: 22CV-0201191

Tentative Ruling on Order to Show Cause Re Dismissal of Claim: An Order to Show Cause Re: Dismissal ("OSC") issued on February 4, 2024, pursuant to Gov't Code § 68608(b) to Claimant Marissa Duchi for failure to appear on January 27, 2025, as ordered on December 16, 2024. No response to the OSC has been filed. The Court **DISMISSES** Claimant's Claim Opposing Forfeiture for failure to appear. The clerk is instructed to prepare a separate Order Dismissing the Claim Opposing Forfeiture filed December 12, 2022. Today's 9:00 a.m. review hearing is confirmed.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Disclosure of Peace Officer Records: Plaintiff seeks disclosure of Peace Officer records pursuant to Evidence Code sections 1043 and 1045. Defendant City of Redding opposes the Motion.

Penal Code sections 832.5 and 832.7 makes the personnel records of peace officers confidential. Evidence Code section 1043 provides the procedural mechanism by which these personnel records can be obtained for use in civil litigation. The statute requires a noticed motion brought under CCP § 1005 which is served on all parties and the governmental agency that has custody and control of the records. Evid. Code § 1043(a). The motion must identify the litigation for which the records are sought, provide a description of the records and be supported by affidavits establishing good cause for the disclosure. Evid. Code § 1043(b)(1) – (3). The threshold showing of “good cause” is relatively low. *City of Santa Cruz v. Municipal Court* (1989) 49 Cal.3d 74, 83. Good cause exists when the requesting party can demonstrate that the type of information/records sought are material to the subject matter involved in the litigation. *Id.* General allegations that establish some cause for discovery are sufficient. *Id.* at 84-86. Affidavits made on information and belief are acceptable. *Id.* at 86.

Plaintiff seeks an order compelling production of City of Redding Police Records. Specifically, Plaintiff seeks:

“Any and all records, reports, documents, correspondence, punch detail reports, work schedules, W-2s, notes, ledgers, journals, workers compensation records, applications for employment, medical and health records, information regarding raises, promotions, absenteeism, disciplinary actions, layoffs, dismissals, termination, evaluations ... from the first date of employment to the present date ...on the below named persons September Wynhoff and all Officers who were investigated for wrongful acts against her.”

(Motion 3:3-14.)

Plaintiff’s Motion and supporting Declaration of Britanie Crippen argue that the requested records are material because they are directly relevant to the amount of recoverable economic damages in this case, including loss of future income. Plaintiff argues that absent information regarding her earnings history, sexual harassment investigations and complaints and any investigation into her domestic violence incident, the parties’ economists are unable to evaluate the scope of Plaintiff’s economic harm. (Motion 4:20-23; Decl. Crippen ¶¶ 8, 11.)

Plaintiff’s requests for records here is plainly overbroad and unsupported by good cause. Plaintiff seeks records including medical and health records, employment applications, and workers compensation records for unspecified officers from their first date of employment to the present. Plaintiff has not established these records are relevant to the subject matter of this litigation.

Plaintiff’s Reply brief, for the first time, narrows some of the categories of documents requested, and specifies the names of nine officers whose records are sought. (Reply 2: 20-21.) It is improper to identify the individual officers whose records are sought for the first time in a reply brief. The officers were not identified in the moving papers. However, Defendant’s Opposition indicates that this “modification” was presented to them via email prior to their filing of the Opposition, and Defendant did address the issue in their brief. Even if these names had been properly presented in the moving papers, the request is still overbroad. It seeks personnel and employment records from the first date of employment to the present, despite the fact that this action concerns allegations of harassment and wrongful termination during the period of Plaintiff’s employment of less than a year, which was approximately December 2022 – November 2023. No information is provided regarding any of the nine individual officers’ alleged connection to the case. Although the

threshold for establishing good cause for production of peace officer records is relatively low, Plaintiff has not met it here. The Motion is **DENIED** without prejudice. A proposed order has been lodged and will be modified.

9:00 a.m. Review Hearings

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC

Case Number: 24CV-0204149

This matter is on calendar for review regarding status of service. Plaintiff has filed a status report indicating that previously imposed sanctions were paid on March 4, 2025. Proof of service of summons was filed March 6, 2025. This matter is continued to **Monday, May 12, 2025 at 9:00 a.m. in Department 64** for review regarding responsive pleadings and trial setting. Because Defendants have not yet appeared in this action, Plaintiff is required to prepare and serve on Defendants a Notice of Status and Trial Setting Hearing for **Monday, May 12, 2025 at 9:00 a.m. in Department 64** and file a Proof of Service of having done so with the Court. This Notice must be personally served on Defendants unless they file an appearance before this hearing, in which case the Notice may be served by mail in compliance with the Code of Civil Procedure. **No appearance is necessary on today's calendar.**

CHAVEZ VS. CORLESS, ET AL.

Case Number: 24CV-0205160

This matter is on calendar for confirmation of filing the acknowledgement of receipt of order and funds for deposit in blocked account. No acknowledgment has been filed. No status report has been filed. An appearance is necessary on today's calendar to provide a status of the funds.

DOBBINS, ET AL. VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORT

Case Number: CVCV20-0194615

This matter is on calendar for review regarding status of settlement. This matter is also on calendar on today's 8:30 a.m. Law and Motion calendar for further proceedings on Plaintiff's Motion for Preliminary Approval of Class Action Settlement. As noted in the Court's tentative ruling on that Motion, the Court intends to deny the Motion without prejudice. This matter will be set for review regarding status of settlement on **Monday, June 9, 2025, at 9:00 a.m. in Department 64**. No appearance is necessary on today's calendar.

HUMPHREY VS. JAMV, INC

Case Number: 23CV-0202578

This matter is on calendar for review regarding status of mediation. No status statements have been filed. An appearance is necessary on today's calendar to provide a status of mediation.

KEADING VS. GENERAL MOTORS LLC

Case Number: 23CV-0203717

This matter is on calendar for review regarding status of judgment/dismissal. A Notice of Conditional Settlement was filed on September 6, 2024 which indicates that the case would be dismissed no later than January 6, 2025. No dismissal is on file. The Court intends to dismiss this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

KEDDINGTON VS. GOLDEN STATE FARM CREDIT, ACA, ET AL.

Case Number: 23CV-0201777

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated January 30, 2025. The Court designates this matter EXEMPT from case disposition time standards. Plaintiff has posted jury fees but Defendants have not. Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

SCHWERDT, ET AL. VS. SCHLAPIA, ET AL.

Case Number: 24CV-0204563

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated January 6, 2025. Plaintiff has filed a status conference statement indicating that Plaintiffs and Defendant Wampler have commenced discovery, and have proposed sending transcripts to AAA in hopes they will assign her counsel. Plaintiffs request a 60 day continuance for trial setting. This matter is continued to **Monday, May 12, 2025 at 9:00 a.m. in Department 64** for review regarding trial setting. No appearance is necessary on today's calendar.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

Case Number: 23CV-0203137

This matter is on calendar for review regarding status of service. The case is still not at issue. It appears that none of the Defendants have been properly served. The proofs of service on file for Bridgeway Inn & Suites and Tera Sahara, Inc. appear to be invalid. The proof of service filed December 2, 2024 indicates Bridgeway Inn & Suites' agent for service could not be ascertained, and that service was on a Sean Doe. This is not a valid method of service on a business entity. See CCP §§ 415.30, 416.10-416.40. The proof of service filed February 27, 2025 for Tera Sahara, Inc. indicates that the process server discovered that the location is now called "Guest Place" and the agent for service is out of state. Service was on a "Mohkn Doe – Manager." Again, this is not a valid method of service on a business entity. Additionally, it is unclear what relationship, if any, "Guest Place" has to the named Defendant.

The Complaint in this matter was filed on September 1, 2023 and there is still no valid Proof of Service of Summons on file for Defendants David Lin, Laura Doe, Bridgeway Inn & Suites, or Tera Sahara, Inc. The Court has previously imposed sanctions, which have not been paid. The Court has previously issued an OSC re Dismissal, which was vacated at Plaintiff's request, upon assurances that this matter would soon be at issue. The Court will issue another OSC re Dismissal for failure to abide by California Rules of Court 3.110 and 3.1380. Given the long history of Plaintiff's failure to abide by the Rules of Court despite numerous continuances, it appears to the Court that no lesser sanction would be effective. Hearing on the OSC re Dismissal will be set for **Monday, April 21, 2025 at 8:30 a.m. in Department 64**. The clerk is directed to prepare a separate OSC re Dismissal.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,988.00 U.S. CURRENCY

Case Number: 22CV-0201191

This matter is on calendar for review regarding status. The Court notes that the matter is set for hearing at 8:30 a.m. today on an OSC re Dismissal of Claimant's Claim Opposing Forfeiture, which the Court intends to grant. An appearance is necessary on today's calendar to set a hearing

date for the People's Petition for Forfeiture in Rem, which was filed January 6, 2023.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$15,450.00 US CURRENCY

Case Number: 24CV-0206302

This matter is on calendar for review regarding status. Real Party in Interest Joseph Chapman-James filed a Claim Opposing Forfeiture on October 24, 2024. The People have waived defects in service, and filed a Petition for Forfeiture on February 6, 2025. An appearance is necessary on today's calendar to provide the Court with a status of the underlying criminal matter.

BALLARD VS. WINCOFOODS

Case Number: CVPO21-0198266

This matter is on calendar for review regarding status of settlement. Dismissals have been filed by Plaintiff, Cross-Complainant The Matworks Company, LLC. No dismissal has been filed by Cross-Complainant Winco Foods, LLC. An appearance is necessary on today's calendar to provide a status of Winco Foods' Cross-Complaint.